

Kumari M Mythri vs Sri R Muniraju on 21 October, 2011

Author: Jawad Rahim

Bench: Jawad Rahim

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IN THE HEGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 21" DAY OF OCTOBER 2011

BEFORE

THE HONBLE MRJUSTICE 3AWAD R_A_H_'I'M< _

C.R.P. NO. 234/2010

BETWEEN:

KUMARI MMYTHRI .

AGED ABOUT 17 YEARS-,._ '*~._

SINCE MINOR REPRESENTED

BY HER MOTHERAND b!AT1JF?.-AVVL»EA
GUARDIAN SMT.A';'3r1N::3DA.
D/O K.V.ANJENAYAPPA',T._V.7'

AGED ABOUT 39)fEARs,_ V
R/A No,1.041/2, T1LAT<A:AGAR, ~ A
OPP: sARA;;TH:c-:,1:\=;{:C

sAARJATPUR'A:RoAD,A ' '
TVVATTIBELE, AN EKAL}
'PIN. ~'~ 56'2.'1.07
- - PETITTONER
(Es?\$R1,VG0uT*Aa~A_-RAJESWAR, ADV.,)

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QEEv;"'\$ARATHI CLINEQ;
'~ VSAZREAPUR RQAEe,
,fix\$"\$IB%iE_, A?xEES<R\$_,_;
@E\$'«\$ «A 5%: :0?

"T2? E,E\5AGARA3i}

S/Q LATE CHIKKAVEERAPPA REBDY

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AGED ABOUT 55 YEARS,
R/O YAMARE VILLAGE,
SARJAPUR HOBLI,
ANEKAL TALUK,

PIN W 562 125

NEsPDNDEN'Ts'.._"H.

(BY SR1 H.N.PRAKASH 8: SR1 H.MAN3uNATN;_A-Dspisgg

FOR R1)

THIS CRP FILED U/S 115 R/W SW48 A.IITTD.IN,ARDS Afft'--«..

AND S--8(5) HINDU MINORITY AN-D"'G'uARDIANsN'IP'A--CT,?»3
AGAUBST TGE IRDER DATED 03.=10.2.G09 PA'SSED=.IN__ G,.8I

w.C.No.5/2009 ON THE FILE OF'-._THE 'C.I\.«<II., 3LjD.GE._
(sR.DN) AND IMEC, ANEKAL,' A_LLLOWING THETETITDN UJS
8(2) OF THE HINDU ¥V!INORIT_Y*~._Al\id C\$.UAF\$DIAi'%,SH'IP ACT"

TO PERMIT THE FATHER AND NATURAL GUARDIAN OF THE
PETITIONER To ALIENATE THE-'SCH-»E.DuLE"I>.RDPERTY IN
FAVOUR OF INTENDING f?UF?.CHASER, AND THE SAID
ALIENATIDN IS FOR T_1HE'I..E3ENEF'IT».V'OF THE MINOR
PETITIONER. 2 ..

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consequent to which Vinoda filed a petition under Section
13(1)(a) of the Hindu Marriage Act for divorce. She
succeeded in obtaining divorce by order dated 1.3.2005.

evidenced from the proceedings in M.C.14/99. 'V

b) Subsequently it appears as per the following: `wisiiers, 13* respeedentwfvuniraju :exe$;ii*czed"'~raa`

gifting imrnovabie prepe='t§:__ be.=;V_ri'riq rV»s'i're,' :4_v«'i\ie{.S.6,

Khanushumari 776 formed ezrxf-.:QiTr' _Sur\}e',ré_VV:Nd.3\$s]éif1 and
384/2 in faveur of his 'd.._a:7;;;r-ghi:-erm;2.ei:itier2'e«re 'hereir': and under
the deed, aepoirrted Vino.d'a',V :ea"iE"era'i:smether to be the

guardian.

C) gift vi'i'a:s ..a7<;~c:ed'ced, possession was obtained

andéjmee the i*:*.i;§'70Vr became the ebseizrte ewrier of the seid

:Apreveer§g:}A. tEe ferEher actiee, aii ee-related reeerde were

reemtee: i ~e rrfe'r""eeme. fiurree ere eered, :3': reeeeriderii:

fiiee i\fs;. 'fC}»<::;;'®\$ en :\$,12gZQG\$ ageie seeking eieeree, but

it eri\$\$3dre' er tee eeid eeritieer

d} Some 'errreierter en 25r3r28§§,, he fired Q &

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E/ ' J

Guardianship Act, 1956, seeking permission to set the
property referred to above gifted in favour of the

He brought no person into the party array. _

was ordered in SAMYUKTA E<ARNATAK_AV---.f\$jl}: 't)3VES0 tied A

22.4.2009 showing posting of the petitioner

The fact of publication of notice was not

petitioner or her guardian.

6:) On 2.7.2009; the Case ex parte
and produced' 55 the teamed trial
judge dated 3.10.2009
permitted him. Armed with the
said property for Rs.5,30,000/- in

favour of the V25V". The deed under a deed of sale dated

20.11.2000. The respondent get the records before the

and thereafter the

See the records to the respondent

of the site: 5% of Rs.5,30,000/-, Agreed by the ES:

the deed; the deed of Rs.5,30,000/-

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4. Therefore, it is necessary to examine whether the
court could have granted such permission, and if not

were the duties of the guardian. The answer

the negative for the reason Section 8 of

and Guardianship Act provides

8. Powers of nature! guardian. (1) 'that' the guardian of a Hindu who has power to do the business of this Section or the business of the guardian are necessary or the guardian is not a Hindu, but the guardian is not a Hindu: "The guardian of a Hindu who is a Hindu by birth, adoption or marriage, and who is not a Hindu by birth, adoption or marriage, is not a Hindu guardian by birth, adoption or marriage."

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(2) _3'Ahe_--vVeeettefe:.<V:gtierdia--n shall not, wittieet the
Vviereioius ;set'm\$S'si:\$re---.ofV..tt:e court mortgage
'V {»3,}_V triiiottgage or charge; or transfer by gale;
a;gift;-- A. e><ci;2e'r%'g'e'V er otherwiee, any eert of the

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mtee? wit: etteée mejetétga

"?'
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(3) Any disposal of imrnovabie property by the
natural guardian, in contravention of sub~seci:éon"'----.

(1) or subsection (2), is voidable at the instance'

the minor or any person claiming under him._j"" " '

(4) No court shall grant perm_i;~3s.%n.n to
guardian to do any of the acte rn:e.otione'd.' A'

section (,2) except in cases of rieclessity or_"_for"tlie ' '

evident advantage of the nfinog'.

(5) The C3uardians~..__and_fVnlniarrcis 189d, 'shall
apply to an in "4respec't.__ieVf:v aiyapplicatien for
obtaining the perm-iesion 'o-fine".cec;%tv.."Q.néer sub-
section ;~i('2'};.L."in all ~:a's._.lf5 ii: were an
appligatill/3n)fer-':ebtain.ing~.the p'e:rrn.ission of the Cour':
under-Vgeetian 25; of arid in particular-

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a--pp\$icator\$V"siaa\$l=,oes...:ci'een}ed to be proceedings

under i:natV';'%ct".i2v\$t\$iii'i"n. the meaning of Section 4~A

A. -- thereof,

{bi}):V5€3'v~\$'3'L;\$V\$'t snail ebserve te pmceaere and

nla'\$re--.%{ne power spécéfiee in sobwsections {2},{3}

it 'an<:i.l.l.{ii»\$"e€.18ectien 3: ef that Act; aria

''{c} an appeal snali iie tram an Greer ef the
man refusing pernrneaie ie the naterai guardian to
as any er" the aeta rrsenierzed in se'p~»secé:ie'n:{2'; at
A this aetier: ion awe eoert te wnécn appeals araéeanly
iée from the aeciséens ef 'mat ceert.

(6) In this section "court" means tne city civil court

or a district court or a court empowered
Section 4-/A of the Guardians and Wards Act,
within the iocai limits of whase jurisdiction" H
irnrnevable property in respect cf fm'h'\$'c\$'f:'_V.gnéw
appiication is made is situate, Qlfidii.
immovable Dmilerifif E5 siti»'\$i:b\$*:2' withifl. "the" DV
jurisdiction at more thai%i__é'3n.e such :cnn_rt;.:vrriVe'ensVV
the court within the limite'-.Q_ufi":wh:f:gse

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S. The mandate of \$eVctE_<V3e"\$ fun-ci.e'u5Vter\$~ly is to protect
the interest miinor, "his"'ve:\$t:éte....afhd to permit oniy

such acts \$'§or.:.i:1si;s'i'iEtenéréltf\$nd.r@255 may safeguard his

estate:*--__ the 13' respondent

n1isrepresent%ii:gx'tifie't._ he is the father and naturai g:g3'r':£ieh', \$i&ed:i:E1e.,___;9;et~ité@n
under Section 8(2) er the Hindu ' i.'}fiEr29ri*tyj"eafiti""{3Lserdienship Act eeking eerméesien te
seii t'he"Vi\$pre\$e'--rj:jQA'eI=eiiiftee te his eeeghter, ene the tréei ceert w\$thc.;tstA.Ve><emEning
whether cércernetances enumerated in V' Sieiltztriéen□2% ef the nct have eeee rneée eat; greetee
Awggernieeien and straightaway ereceedee te eeeint him as 5", 131g 1! ./ / 3:

guardian. Armed with that order, the 1" respondent had Eiquidated the property of
the minor petitéener.

6. It is atso interesting to note that the 3eained»._4:'tr.E_e! judge straightaway
proceeded to grant permiss%'e'n--«',te_J:

the property without imposing any condo:-t»iriéj,..:e3{zen circumstances so
warranted. The5=__erc_1er. Impu.'gr1'ed"patsee;d.A by the learned tréai judge ts:
not EVhe.V_confer:"n't€ty~ttie provisions of Section 8 of'Vt4t""tt\$e
.uHEr1"tf1'a;,:ittvtinevjgity and Guardianship Act. p;rtrr;~\$.s3,te'n_granted was te
alienate for the._ beneAfi.t...:'e'f. ttxeg ';Th:::s, the 1" respor:.dent'_'?§'ae_;

::E:ree't_er_ d-eeign, first created a sale in favour er jeggzmfréstpoeearrt~'aas free': him get the eroperty' transferred ute..,vhé'sv.eae*:etv.Zt bears testérrmmf te his eénéster °=e;e\$î*rgr1?eff eferzeiveetee between him and 2" reeeenderrt te t--..tVt:.e the rreer. Safety it eee be eee there is c\$e'e__r ;fer%:fVE\$î'et er' interest eetweee the rreer eee :5? reeeerteeet eee the teat eeert eeeéd eexze eeticee it rather " ..tE":-eetréeeeeéee it te greet eerreéeeieeg The ireeeeeeee erefer; □zerefereg is te be Set eeieea

7. Besides, as the order has been obtained by the 15* respondent on misrepresentation and he has indugeci in acts covered by sub--section (3) of Section 8 of tiiet' Minority and Guardianship Act, aii transactions':.iiavv.eV' "

heici voidable at the instance CV)-f""iZi'i'€3.'FY'ti_i;3OEf;,"fVSçî'i'iVCe.'_:'\$hé.V' it minor in this petition is chaiengihe'.tne_A_saidiit:'ans'actie.n«hit:_ by sub-section (3) of Sectioni:]8,A» ithnas that " ' disposal of the immovable prot\$gertg\$----by~-the 1i*';*es;3vi\$ndent is in contravention of subisectioov sub~section (3) of Section I»i:ii'i*iority«~:.'i'nd Guardianship Act, and the're'fo_re,- i'ro':_}:i__.;' ii'

8. iiatie icii%ciii?i*i;i;i?:aifi_:cie:.<;:,ufchhe if' ?€S\$3o%?'3dei'ii is directed to acc_oi,iiit"Eorthe'Vii'iAo«rfii'e\$g"iii*ecei\ed? if any, on behalf of the i\$:i:ti:Eit_o tEiEV'i*ty-----sieve from today ens restoie oreperieg sizanes eiIowed in terms of this oreeliz saw is s